		1159.) Accordingly, Plaintiff did not allege sufficient facts to seek injunctive relief. Because Plaintiff did not allege sufficient facts to state the five causes of action alleged in Plaintiff's FAC, Luna's demurrer is sustained with 15 days leave to amend. In light of this ruling, the Court need not reach the merits of the other grounds of Luna's demurrer. Luna shall give notice.
10.	2024-1444310 KDG Investments, Inc. vs. Liu	Case Management Conference Defendant Di Liu's ("Defendant") Demurrer to Plaintiff KDG Investments Inc.'s ("Plaintiff") Second Amended Complaint is overruled. Defendant's request for judicial notice is granted. Defendant demurs to the only cause of action, intentional interference with prospective economic advantage, alleged in Plaintiffs' SAC. "The elements of intentional interference with prospective economic advantage have been stated as follows: '(1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentional acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant.'" (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 339, internal citations omitted.) Further, it must be alleged that the defendant engaged in specific wrongful conduct that was "wrongful by some legal measure other than the fact of interference itself." (*Della Penna v. Toyota Motor Sales, U.S.A., Inc.* (1995) 11 Cal.4th 376, 393; CACI no. 2202.) The Court previously sustained the demurrer to this claim in the FAC (with leave to amend) on the grounds that: > Plaintiff does not allege that Liu committed an independently wrongful act. Rather, Plaintiff alleges that Defendant intended to aid, abet, further, advance, exploit, profit from, and/or capitalize upon Rudat's fraudulent acquisition of the property. (FAC, ¶19.) There is no allegation that Rudat and Liu acted in concert or even knew each other prior to the sale. These allegations are conclusory and lack facts. Absent allegations of a conspiracy, which Plaintiff chose not to plead, Plaintiff cannot

		conflate the actions of Rudat with the later actions of Liu. (ROA 102.) Presently, Defendant demurs, again, noting that: "While Plaintiff now liberally sprinkles the word 'conspired' throughout the SAC, it does so entirely on 'information and belief,' pleading contradictory alternative theories without a single specific fact connecting Ms. Liu to Mr. Rudat prior to the foreclosure sale." (ROA 121 [Dem. at p. 4].) Specifically, the SAC "does not allege any specific fact showing that Ms. Liu and Mr. Rudat ever communicated, met, or agreed to anything before or during the foreclosure sale. It alleges no date, no place, no manner of agreement, and no joint conduct directed at the trustee or at Plaintiff. Instead, it relies on circumstantial inferences from neutral facts: the Property was not listed on the MLS (SAC, ¶ 22); Ms. Liu paid more than Rudat had paid ten months earlier (SAC, ¶ 19); the former owner still occupied the Property when Ms. Liu purchased it (SAC, ¶ 21); and Rudat obtained a commercial loan from Equity Wave (SAC, ¶¶ 14-17)." (Dem. at p. 6.) Defendant also asserts other arguments, such as Plaintiff does not have standing to set aside or cancel the deed of trust to Defendant, and that Plaintiff fails to allege any "substantial assistance" for a conspiracy claim premised on fraud. The Court rejects Defendant's standing argument, because Plaintiff is no longer seeking cancellation of the trust deed, or other equitable relief. The Court also rejects Defendant's argument that the claim is not pled with sufficient specificity or details, or that the alleged damages are "speculative." The less particularity doctrine is applicable, here, because Plaintiff is pleading about matters of which the Defendant would have superior knowledge, including Defendant's knowledge and intent. (*Foster v. Sexton* (2021) 61 Cal.App.5th 998, 1028; see also Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 6:121.5.) This, of course, does not mean that Plaintiff or his counsel are permitted to allege facts on information and belief without any reasonable basis for such allegations, as doing so may very well result in the imposition of sanctions. (Code Civ. Proc., §§ 128.5, 128.8.) In ruling on the demurrer, it is well-settled that the Court must accept Plaintiff's factual allegations as true, "however improbable they may be." (*Hacker v. Homeward Residential, Inc.* (2018) 26 Cal.App.5th 270, 280, internal citation omitted; see also Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 7:45.) In the SAC, Plaintiff alleges Defendant "knew that Rudat submitted a false Affidavit in order to purchase the Property" and "conspired with Rudat in each and every of his above-alleged actions related to his purchase of the Property from the Trustee." Further, "Defendant negotiated with Rudat, as consideration for her participation in the above-described

		conspiracy, a sale price significantly less than the market value at that time." (SAC at ¶¶ 20-27.) The Court finds Plaintiff has alleged sufficient facts to plead a claim for intentional interference with prospective economic advantage based on a theory of conspiracy liability. Plaintiff has alleged: (1) an economic relationship between him and the foreclosure trustee, with the probability of future economic benefit to the Plaintiff (at ¶ 7); (2) that Defendant had knowledge of this relationship (at ¶ 29); (3) intentional acts on the part of the Defendant designed to disrupt the relationship (i.e., the conspiracy with Rudat; at ¶¶ 20-27); (4) the actual disruption of the relationship (at ¶ 10); and (5) economic harm to the Plaintiff proximately caused by the acts of the Defendant (at ¶ 51). Accordingly, the Demurrer is overruled. Defendant is ordered to answer the SAC within 15 days. Plaintiff shall give notice of the ruling.